

22STCV03688 22STCV03688

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-15

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Case Number: 22STCV03688 Hearing Date: July 15, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 11:34 AM on July 14, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 14, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff

alleges that Defendant lessors misrepresented that the commercial warehouse was usable for Plaintiff's trucking, warehousing, and logistics business, but because the premises were not ADA compliant, it was not eligible for a certificate of occupancy. This resulted in Plaintiff not being able to operate

its business, which caused businesses losses.

Defendant

300 West Artesia, L.P. filed a Cross-Complaint alleging that Cross-Defendants breached the Lease.

Defendant/Cross-Complainant

300 West Artesia, L.P. moves for an order compelling Plaintiff Jupiter Warehouse and Distribution's compliance with its agreement to provide Code compliant Form Interrogatory responses and this Court's prior orders compelling Jupiter to provide Code compliant responses. Defendant also requests that this Court issue evidentiary, issue, and terminating sanctions to preclude the introduction of evidence, argument, or claims regarding the supposed "lost profits" which Plaintiff refuses to provide sufficient information to ascertain or understand.

TENTATIVE RULING

This is actually a motion to compel further responses and motion for issue, evidentiary and evidence sanctions, but is captioned as a motion to compel compliance with the Court's orders and for an order "imposing sanctions." In any event, Plaintiff Jupiter Warehouse and Distribution has provided verified fifth supplemental response to form interrogatory 8.7, served after this motion was filed. (Declaration of Andrew S. Sussman, ¶ 9; Exh. B.) This renders the motion to compel MOOT. Nonetheless, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules Court, Rule 3.1348(a).)

As for sanctions, the Court declines

to impose issue, evidentiary or terminating sanctions at this time, but notes that the difficulty Defendant experienced in obtaining responses does support a finding that Jupiter has committed discovery abuse. Further noncompliance may result in an escalation of sanctions. As for monetary

sanctions, Defendant 300 West Artesia's notice of motion only identifies Jupiter as the party against whom monetary sanctions are sought[1] (in an unspecified amount). The Court finds that monetary sanctions against Jupiter are appropriate, as it took five supplemental responses before a fully responsive answer emerged. The Court finds that \$5,700 is the reasonable amount of attorney's fees incurred in meeting and conferring and bringing this motion relating to a single form interrogatory (4 hours at \$850 and 4 hours at \$575.—see

Jonathan P. Fisher Decl., ¶ 14.) As such, the request for monetary sanctions is GRANTED in the reduced amount of \$5,700 against Jupiter Warehouse and Distribution only. Sanctions are to be paid to Defendant 300 West Artesia, L.P.'s counsel within 20 days.

[1]

Civ. Proc. Code, § 2023.040 provides:

A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.

(Civ. Proc. Code, § 2023.040.)